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RAJASTHAN APO MAINS TEST SERIES 2026

Test No. 03 — Paper-I : Law

Protection of Children from Sexual Offences Act, 2012

MODEL ANSWER KEY

Date : 10 October 2026

Total Questions : 15

NOTE TO CANDIDATES

1. These are model answers framed strictly from the bare provisions of the Protection of Children from Sexual Offences Act, 2012. The section indicated below each question is the provision on which the answer turns.
2. Answers to the 5-mark questions are to be written in 30 words and to the 10-mark questions in 75 words. The model answers below are set out at greater length so that every element of the provision is visible; in the examination, reproduce the italicised essentials only.
3. Marks are awarded for the correct provision, its essential ingredients and the quantum of punishment or period prescribed, and not for length.

(Q.No. 1 to 10)

Note : Each question carries 5 marks.

1. **Does a digital or computer-generated image which is not of an actual child fall within 'child pornography' under the Protection of Children from Sexual Offences Act, 2012? State the provision.** [5]

Section 2(1)(da)

Ans. Yes. Section 2(1)(da) defines "child pornography" as any visual depiction of sexually explicit conduct involving a child, and expressly includes a photograph, video, digital or computer generated image *indistinguishable from an actual child*, as well as an image created, adapted or modified, but appearing to depict a child. Involvement of a real child is therefore not essential.

2. **State the provision as to the punishment for penetrative sexual assault committed upon a child below sixteen years of age, and the purpose for which the fine imposed is to be utilised.** [5]

Sections 4(2) and 4(3)

Ans. Section 4(2) punishes penetrative sexual assault upon a child below sixteen years with imprisonment not less than twenty years, extending to imprisonment for life — which shall mean imprisonment for the remainder of that person's natural life — and fine. Section 4(3)

requires the fine imposed under sub-section (1) to be just and reasonable, and paid to the victim to meet medical expenses and rehabilitation.

3. **In what circumstances does penetrative sexual assault committed by a police officer amount to aggravated penetrative sexual assault under the Protection of Children from Sexual Offences Act, 2012?** [5]

Section 5(a)

Ans. Section 5(a): where a police officer commits penetrative sexual assault on a child — (i) within the limits of the police station or premises at which he is appointed; (ii) in the premises of any station house, whether or not situated in the police station, to which he is appointed; (iii) in the course of his duties or otherwise; or (iv) where he is identified as a police officer.

4. **Sexual harassment upon a child is committed only where the person acts ‘with sexual intent’. How is the question of sexual intent to be determined? State the provision.** [5]

Explanation to Section 11; Section 30

Ans. The Explanation to Section 11 provides that any question which involves “sexual intent” shall be a *question of fact*. It is not a matter of law, but is to be inferred from the proved circumstances of each case. Section 30 further permits the Special Court to presume the existence of the requisite culpable mental state, the accused being entitled to prove its absence.

5. **State the provision as to the punishment for storage of pornographic material involving a child for a commercial purpose, and distinguish it from storage coupled with failure to delete, destroy or report.** [5]

Sections 15(3) and 15(1)

Ans. Section 15(3) punishes storage or possession for a commercial purpose with imprisonment not less than three years extending to five years, or fine, or both; and on second or subsequent conviction, not less than five years extending to seven years, with fine. Section 15(1) punishes storage with failure to delete, destroy or report with *fine alone* — not less than five thousand rupees, and ten thousand rupees on a subsequent offence.

6. **When is a person said to ‘instigate’ the doing of an offence, and when is a person who transports a child by abuse of a position of power said to aid it? State the provisions.** [5]

Explanations I and III to Section 16

Ans. Explanation I to Section 16: whoever, by wilful misrepresentation or wilful concealment of a material fact he is bound to disclose, voluntarily causes or procures a thing to be done, instigates that offence. Explanation III: whoever employs, harbours, receives or transports a child by threat, force, coercion, abduction, fraud, deception or abuse of power or vulnerability, or by payments obtaining the consent of a person having control, aids that act.

7. **Is a child liable to punishment for failure to report an offence, or for making a false complaint or providing false information, under the Protection of Children from Sexual Offences Act, 2012? State the provisions.** [5]

Sections 21(3) and 22(2)

Ans. No. Section 21(3) expressly provides that sub-section (1) of Section 21 — which punishes failure to report under Section 19(1) or Section 20 — shall not apply to a child. Section 22(2) provides that where a false complaint has been made, or false information given, by a child, no punishment shall be imposed on such child. Section 22(3) instead punishes an adult who falsely complains against a child.

8. **State the provision as to the place at which, and the police officer by whom, the statement of a child is to be recorded, and the restriction upon detention of a child.** [5]

Section 24(1), (2) and (4)

Ans. Section 24(1): the statement is recorded at the residence of the child, or where he usually resides, or at a place of his choice, and as far as practicable by a *woman police officer not below the rank of sub-inspector*. Section 24(2): that officer shall not be in uniform. Section 24(4): no child shall be detained in the police station in the night for any reason.

9. **In respect of which offences does the Special Court presume that the accused has committed the offence? What standard of proof must the accused meet to displace a presumption of culpable mental state?** [5]

Sections 29 and 30(2)

Ans. Section 29 confines the presumption to a prosecution for committing, abetting or attempting to commit an offence under *Sections 3, 5, 7 and 9*; the Special Court shall then presume the accused committed it, unless the contrary is proved. Section 30(2): a fact is proved only when the Special Court believes it to exist *beyond reasonable doubt*, and not merely on a preponderance of probability.

10. **Where a question arises before the Special Court whether a person is a child, how is it to be determined, and what is the effect of subsequent proof that the age so determined was incorrect?** [5]

Sections 34(2) and 34(3)

Ans. Section 34(2): the question shall be determined by the Special Court after satisfying itself about the age of such person, and it shall record in writing its reasons for the determination. Section 34(3): no order made by the Special Court shall be deemed invalid merely by any subsequent proof that the age so determined was not the correct age of that person.

(Q.No. 11 to 15)

Note : Each question carries **10** marks.

11. **Distinguish between ‘sexual assault’ and ‘aggravated sexual assault’ and state the punishment for each. Is skin-to-skin contact necessary to constitute sexual assault? Refer to *Attorney General for India v. Satish*, (2022) 5 SCC 545.** [10]

Sections 7 to 10

Ans. Section 7: whoever, with sexual intent, touches the vagina, penis, anus or breast of the child, or makes the child touch his or another’s, or does any other act with sexual intent involving physical contact without penetration, commits sexual assault. Section 8 punishes it with three to five years and fine.

Section 9 makes the assault *aggravated* by the offender's office or relationship — police officer, member of the armed or security forces, public servant, staff of a jail, remand, protection or observation home, hospital, or educational or religious institution, a relative, or gang sexual assault. Section 10 punishes it with five to seven years and fine.

In *Attorney General for India v. Satish* the Supreme Court set aside the “skin-to-skin” view, holding that physical contact need not be direct skin contact; the gravamen of Section 7 is *sexual intent*, and a narrow construction would defeat the Act's object.

12. What suggestions have been made by the Supreme Court in *Just Rights for Children Alliance v. S. Harish and others*, A.I.R. 2024 S.C. 5531 regarding Section 15 of the Protection of Children from Sexual Offences Act, 2012? Discuss. [10]

Section 15; Section 30

Ans. Setting aside the Madras High Court and restoring the prosecution, the Court held that Section 15 creates *three distinct offences*, graded by the mens rea manifested in the actus reus — sub-section (1), storage or possession with failure to delete, destroy or report; sub-section (2), storage for transmitting, propagating, displaying or distributing; sub-section (3), storage for a commercial purpose. The sub-section charged must be identified. Possession includes constructive possession, so viewing or streaming material over which the accused has control may amount to possession, and failure to delete or report attracts sub-section (1); Section 30's presumption of culpable mental state applies.

Its suggestions: Parliament should amend the Act to substitute “child pornography” with *Child Sexual Exploitative and Abuse Material (CSEAM)*; courts should cease using the former expression in judicial orders; an expert committee be constituted for health and sex education and POCSO awareness; and intermediaries' reporting obligations be enforced.

13. Who is bound to report the commission of an offence under the Protection of Children from Sexual Offences Act, 2012, and to whom? State the obligation of media, studio and photographic facilities to report cases, and the procedure to be followed by the media. [10]

Sections 19, 20 and 23

Ans. Section 19(1): *any person, including the child*, who apprehends that an offence is likely to be committed, or knows one has been committed, shall inform the Special Juvenile Police Unit or the local police. Under 19(5)–(6), where the child needs care and protection, reasons are recorded and arrangements made, and the matter reported to the Child Welfare Committee and Special Court, within twenty-four hours. Section 19(7) grants immunity for information given in good faith.

Section 20: personnel of any media, hotel, lodge, hospital, club, studio or photographic facility must report material sexually exploitative of a child to the Special Juvenile Police Unit or local police.

Section 23: the child's identity shall not be disclosed, save by the Special Court for reasons recorded in writing; the publisher or owner is jointly and severally liable; contravention is punishable with six months to one year, or fine, or both.

- 14. Which courts are competent to try offences under the Protection of Children from Sexual Offences Act, 2012? Explain the procedure and powers of the Special Court, including its power to direct payment of compensation. [10]**

Sections 28, 31, 32 and 33

Ans. Section 28(1): the State Government, in consultation with the Chief Justice of the High Court, designates for each district a Court of Session as the Special Court; a Court of Session already notified as a Children's Court under the Commissions for Protection of Child Rights Act, 2005 is deemed a Special Court. Section 31 applies the Code of Criminal Procedure, the Special Court being deemed a Court of Session. Section 32 requires a Special Public Prosecutor for every Special Court, eligible only if in practice as an advocate for not less than seven years.

Section 33: cognizance is taken without committal; questions to the child are put *through* the Court; the child is not called repeatedly; aggressive questioning is forbidden; identity is not disclosed. Under 33(8) compensation may be directed for physical or mental trauma or immediate rehabilitation; under 33(9) it has all powers of a Court of Session.

- 15. Explain the provisions made for the protection of the child at the trial — the period for recording of evidence and disposal of the case, the child not seeing the accused while testifying, trial in camera, and the right to take assistance of a legal practitioner. [10]**

Sections 35, 36, 37 and 40

Ans. Section 35(1): the evidence of the child shall be recorded within *thirty days* of the Special Court taking cognizance; 35(2): the trial shall be completed, as far as possible, within *one year* of cognizance.

Section 36(1): the child shall not be exposed in any way to the accused while evidence is recorded, while ensuring the accused can hear the child's statement and communicate with his advocate; 36(2) permits video conferencing, single visibility mirrors, curtains or any other device.

Section 37: trials shall be in camera, in the presence of the parents or a person whom the child trusts; where the child must be examined elsewhere, a commission issues under Section 284 of the Code.

Section 40: subject to the proviso to Section 301 of the Code, the family or guardian may engage counsel of their choice; if unable to afford one, the Legal Services Authority shall provide a lawyer.